

# Malaysia 2024 Human Rights Report

## Executive Summary

There were no significant changes in the human rights situation in Malaysia during the year.

Significant human rights issues included credible reports of: cruel, inhuman, or degrading treatment; arbitrary arrest or detention; and serious restrictions on freedom of expression and media freedom, including censorship.

The government arrested and prosecuted some officials engaged in human rights abuses, although nongovernmental organizations alleged impunity.

## Section 1. Life

### a. Extrajudicial Killings

There were no reports the government or its agents committed arbitrary or unlawful killings during the year.

Investigation by the Royal Malaysian Police (RMP) Criminal Investigation Division into the use of deadly force by a police officer occurred only if the attorney general initiated an investigation or approved an application for an investigation by family members of the deceased. When the attorney

general ordered an official inquiry, a coroner's court convened, and a public hearing was held. In such cases, courts generally issued an "open verdict," meaning that there would be no further action.

## **b. Coercion in Population Control**

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

## **Section 2. Liberty**

### **a. Freedom of the Press**

The constitution allowed restrictions on the freedom of speech "in the interest of the security of the Federation...[or] public order." The government regularly restricted freedom of expression for members of the public, nongovernmental organizations (NGOs), and media, citing reasons such as upholding Islam and the special status of ethnic Malays, protecting royalty or national security, maintaining public order, and preserving friendly relations with other countries.

The law prohibited sedition and public comment on topics defined as sensitive, including racial and religious matters and criticism of the king or ruling sultans. The law prohibited speech "with deliberate intent to wound the religious feelings of any person."

In April prosecutors charged political activist Badrul Hisham Shaharin under the Sedition Act for social media remarks he made in April after Bloomberg reported that Prime Minister Anwar Ibrahim held preliminary talks with property development firm Berjaya regarding building a casino in Johor State.

The government restricted the expression of unapproved political views in schools and universities and enforced restrictions on teachers and students who expressed dissenting views. Although faculty members sometimes publicly criticized the government, public university academics whose career advancement and funding depended on the government practiced self-censorship. Self-censorship took place among academics at private institutions as well, spurred by fear the government might revoke the licenses of their institutions. Students were prohibited from “expressing support or sympathy” for an unlawful society or organization.

### **Physical Attacks, Imprisonment, and Pressure**

There were no reports journalists were subjected to violence.

Some journalists were subjected to intimidation by authorities. In August police summoned three journalists of the online news portal *Malaysiakini* after the news site published a report alleging a leadership reshuffle within the RMP. The journalists stated police asked them to reveal their sources during questioning.

## **Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups**

The government maintained the ability to control news content, including the ability to censor, and at times exerted such control over both print and broadcast media. The government banned, restricted, or limited circulation of some publications it considered a threat to public order, morality, or national security. The law required a permit to own a printing press, and printers often were reluctant to print publications critical of the government due to fear of reprisal. Such policies inhibited independent or investigative journalism and resulted in self-censorship in print and broadcast media. Online media outlets were more independent but were more likely to be the target of legal action and harassment.

The government occasionally censored foreign magazines, newspapers, and news programming, most often due to sexual content. Government restrictions on radio and television stations mirrored those on print media, and electronic media predominantly supported the government. Television stations censored programming to follow government guidelines. Kissing onscreen, sex scenes, nudity, strong graphic violence, and vivid language were all prohibited or censored.

The government generally restricted publications it judged might incite racial or religious disharmony.

The government censored films for certain political and religious content, not allowing, for example, screening of films in Hebrew or Yiddish, or from Israel. Although the government allowed foreign films at local film festivals, it sometimes censored content by physically blocking screens until the objectionable scene was over.

In January the government charged film director Khairi Anwar Jailani and producer Tan Meng Kheng with “intentionally hurting religious feelings” through their 2021 film *Mentega Terbang*, which depicted a Muslim teenager exploring other religions in the aftermath of her mother’s death. The government banned the film in September 2023 after Muslim groups complained the film encouraged Muslims to abandon their faith. In January a court allowed the defendants to file a constitutional challenge against the government’s ban. The court placed the criminal trial on hold pending results of the challenge scheduled for January 2025.

## **b. Worker Rights**

### **Freedom of Association and Collective Bargaining**

Amendments to the Trade Unions Act came into force in September, allowing multiple trade unions within a workplace, occupation, or industry. It also explicitly prohibited a trade union from being exclusive to a particular race, religion, or nationality. The law provided for the rights to strike and to bargain collectively. The law prohibited employers from interfering with

trade union activities, including union formation. It prohibited employers from retaliating against workers for legal union activities and required reinstatement of workers fired for union activity. Prior to the amendments, the government did not effectively enforce these laws. Penalties included fines but were seldom assessed and were not commensurate with those under other laws involving denials of civil rights, such as discrimination.

The law prohibited defense and police officials and retired or dismissed workers from joining unions. The law required ministerial approval for unions to affiliate with any organization outside the country. Foreign workers could join a trade union but could not hold union office unless they obtained permission from the Ministry of Human Resources. Subcontracted workers could not form a union and could not negotiate or benefit from collective bargaining agreements.

Amendments to the Trade Unions Act limited the director general of trade unions' power to refuse to register or withdraw registration from unions. Union officials expressed frustration over the unpredictably long registration process. Employers could challenge a union's request for recognition, leading to multiyear delays in recognizing unions. In some instances, companies reportedly also harassed leaders of unions that sought recognition.

Most private-sector workers had the right to bargain collectively, although these negotiations could not include matters of transfer, promotion,

appointments, dismissal, or reinstatement.

A joint consultation system for public-sector labor relations effectively reduced public sector unions to an advisory role; there were no public sector strikes. The government also could compel arbitration in labor disputes at the minister of labor's sole discretion.

Amendments to the Trade Unions Act set a 60 percent minimum yes vote in a secret ballot by union members eligible to vote and employed at the workplace involved to authorize a strike. Subsequently, a report had to be submitted to the director general of trade unions requesting approval of the strike. Workers who struck without the consent of the director general of trade unions were liable to a fine, imprisonment for up to one year, or both. The law prohibited general strikes, and trade unions could not strike over disputes related to trade-union registration or illegal dismissals. Workers could not strike in a broad range of industries, in excess of International Labor Organization (ILO) guidelines, deemed "essential." They could not strike over a dispute under consideration by the Industrial Court.

The ILO observed that the country's laws, regulations, and practices did not fully support freedom of association and collective bargaining. National-level unions and union federations were generally prohibited; the government allowed three regional territorial federations of unions: for peninsular Malaysia and for the states of Sabah and Sarawak. They exercised many of the responsibilities of national-level labor unions,

although they could not bargain on behalf of local unions. The Malaysian Trades Union Congress was a registered “society” of trade unions in both the private and government sectors that did not have the right to bargain collectively or strike but could provide technical support to affiliated members. The Trades Union Congress reported that approximately 6 percent of the country’s workers were in unions, and fewer than 2 percent were covered by collective bargaining agreements. Some workers’ organizations were independent of government, political parties, and employers, but employer-dominated or “yellow” unions were reportedly a concern.

Trade unions asserted some workers had wages withheld or were terminated because of union-related activity. In July the National Union of Bank Employees held a five-day nationwide picket against alleged “union busting” by banks.

The law provided Sabah and Sarawak States authority to enact labor laws separate from the federal labor law, although any amendments had to be passed in parliament. In October parliament increased protections under Sabah State labor laws to align with the Employment Act 1955.

## **Forced or Compulsory Labor**

See the Department of State’s annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

## **Acceptable Work Conditions**

### **Wage and Hour Laws**

The minimum wage applied to both citizen and foreign workers, except for those in domestic service and the gig economy. Minimum wage rates were less than the national poverty line.

The law provided only wage and unfair termination protection to foreign domestic workers. The law excluded them from provisions that stipulated one rest day per week, an eight-hour workday, and a 45-hour workweek. Bilateral agreements or memoranda of understanding between the government and some source countries for migrant workers included provisions for rest periods, compensation, and other conditions of employment, including prohibitions on passport retention, for foreign domestic workers. The law allowed for up to 104 hours of overtime work per month with overtime pay of at least 1.5 times the hourly rate for foreign and Malaysian workers, although it did not apply to domestic (household help) workers.

### **Occupational Safety and Health**

Amendments to the Occupational Safety and Health (OSH) Act came into force in June. OSH laws covered all sectors of the economy except domestic workers, the maritime sector and the armed forces. The law required workers to use safety equipment and cooperate with employers to create a

safe, healthy workplace. Laws on worker's compensation covered local and migrant workers.

The National Occupational Safety and Health Council, composed of workers, employers, and government representatives, created OSH standards and coordinated their implementation. It required employers to identify risks and take precautions, including providing safety training to workers, and compelled companies with more than 40 workers to establish joint management-employee safety committees. Alleged OSH violations were most common in the manufacturing; agriculture, forestry and fishery; and finance, insurance, real estate and business services, according to the Department of Occupational Safety and Health of the Ministry of Human Resources.

### **Wage, Hour, and OSH Enforcement**

The Department of Labor of the Ministry of Human Resources was responsible for enforcing wage, working condition, and OSH standards, but did not do so effectively. Inspectors had the authority to conduct unannounced inspections and initiate sanctions, but the number of enforcement officers was insufficient. Many businesses operated for years without an inspection.

Employers or employees who violated OSH laws were subject to fines, imprisonment, or both. Amendments to the OSH Act increased penalties for

violations, including imprisonment up to two years. Penalties for employers who failed to follow the law began with a fine assessed per employee. Employers could be required to pay back wages plus the fine. If they refused to comply, employers faced additional fines for each day that wages were not paid. Penalties were rarely applied.

Employers did not respect laws on wages and working hours. The Trades Union Congress reported that 12-, 14-, and 18-hour days were common in food and other service industries.

Migrant workers often worked in sectors where violations were common. They performed hazardous duties and had no meaningful access to legal counsel in cases of contract violations and abuse. Some workers alleged their employers subjected them to inhuman living conditions and physically assaulted them. Employers of domestic workers sometimes failed to honor the terms of employment and subjected workers to abuse. Employers reportedly restricted workers' movement and use of mobile telephones; provided substandard food; did not provide sufficient time off; sexually assaulted workers; and harassed and threatened workers, including with deportation. There were no significant government efforts to protect domestic workers.

As of 2021, the most recent year for which statistics were available, more than 3.5 million workers were considered to be in the informal sector.

The law conferred on gig workers the same protection afforded other employees, even without a written contract. In addition, the law required self-employed individuals to register, contribute to the self-employment social security scheme, and pay taxes on income above a certain level.

## **c. Disappearance and Abduction**

### **Disappearance**

There were no reports of enforced disappearances by or on behalf of government authorities.

As of October, there were no updates to the RMP's July 2023 investigation into the disappearance of democracy and refugee rights activist Thuzar Maung, her husband, and three children. They were allegedly abducted by several men posing as police.

### **Prolonged Detention without Charges**

The law prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their arrest or detention in court, and the government generally observed these requirements.

In most cases, the law allowed investigative detention for up to 28 days to prevent a criminal suspect from fleeing or destroying evidence during an investigation.

Police could detain persons suspected of terrorism, organized crime, gang activity, and trafficking in drugs or persons without a warrant or judicial review for two-year terms, renewable indefinitely. Within seven days of the initial detention, however, police had to present the case for detention to a public prosecutor. If the prosecutor agreed “sufficient evidence exists to justify” continued detention and further investigation, a fact-finding inquiry officer appointed by the minister of home affairs would have to report within 59 days to a detention board appointed by the king on the advice of the government. The board could renew the detention order or impose an order to restrict, for a maximum of five years, a suspect’s place of residence, travel, access to communications facilities, and use of the internet.

In November, during the RMP's investigation into Global Ikhwan Services and Business for child sexual exploitation and trafficking offenses, authorities rearrested 34 individuals under the Security Offences (Special Measures) Act (SOSMA), which was intended to address serious national security threats, after the suspects' initial 28-day remand period under the same act expired. In October, two members of parliament criticized the RMP's use of SOSMA to detain suspects. Organized crime charges were subsequently filed against 22 suspects. On November 25, the Human Rights Commission of Malaysia, known as SUHAKAM, criticized the use of SOSMA in this case, calling it disproportionate to the offenses involved and urging adherence to international standards and transparency.

Immigration law allowed authorities to arrest and detain noncitizens for 30 days, pending a deportation decision.

Crowded dockets and understaffed courts often resulted in lengthy pretrial detention, sometimes lasting several years. In March Human Rights Watch reported that the Immigration Department often held migrants indefinitely in immigration detention centers, with some detainees never taken to court.

#### **d. Violations in Religious Freedom**

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

#### **e. Trafficking in Persons**

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

### **Section 3. Security of the Person**

#### **a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment**

No law specifically prohibited torture; however, laws that prohibited “committing grievous hurt” encompassed torture.

More than 60 offenses were subject to caning, sometimes in conjunction

with imprisonment, and judges routinely mandated caning as punishment for crimes, including kidnapping, rape, and robbery, and nonviolent offenses, such as narcotics possession, criminal breach of trust, migrant smuggling, immigration offenses, and others. Civil and criminal law exempted men older than 50, except for rape, and all women from caning. Boys between ages 10 and 18 could receive a maximum of 10 strokes of a “light cane” in a public courtroom.

Impunity was occasionally a problem in the security forces due to corruption and the lack of transparency and civilian oversight. Police abuse of suspects in custody and a lack of accountability were serious problems.

The law did not prohibit female genital mutilation/cutting (FGM/C). A March report by the NGO Orchid Project estimated 93 percent of ethnic Malay Muslim women and girls in the country were subjected to the practice. Ministry of Health guidelines allowed the practice at government health-care facilities. Women’s rights groups contended a 2009 fatwa by the National Council of Islamic Religious Affairs declaring the practice obligatory made FGM/C more prevalent.

## **b. Protection of Children**

### **Child Labor**

The law prohibited all the worst forms of child labor. The law prohibited the

employment of children younger than 15 but permitted some exceptions, such as light work in a family enterprise, work in public entertainment, work performed for the government in a school or in training institutions, or work as an approved apprentice. There was no minimum age for engaging in light work. For children between ages 14 and 18, there was no list clarifying specific occupations or sectors considered hazardous and therefore prohibited.

The government did not effectively enforce laws prohibiting child labor. Those found contravening child labor laws faced penalties that were not commensurate with those for similar crimes, such as kidnapping. Penalties were rarely applied against violators.

NGOs reported stateless children in Sabah State were especially vulnerable to labor exploitation in palm oil production, forced begging, and work in service industries, including restaurants. Although the National Union of Plantation Workers reported it was rare to find children involved in plantation work in peninsular Malaysia, others reported instances of child labor on palm oil plantations across the country. Child sex trafficking also occurred.

Also see the Department of Labor's *List of Goods Produced by Child Labor or Forced Labor* at <https://www.dol.gov/agencies/ilab/reports/child-labor/list-of-goods>.

## **Child Marriage**

The minimum age of marriage varied by state, but in most instances was 18 for men and 16 for women. Muslim girls younger than 16 could marry with the approval of a sharia court. Indigenous persons were governed by customary laws with no fixed minimum age for marriage. In some cases, authorities treated early marriage as a solution to statutory rape. Advocates were concerned Rohingya refugee families were subjecting their daughters to child marriage to reduce economic hardship.

The government's national five-year roadmap (covering 2021-2025) targeted child marriage. The plan outlined policies to increase access to education, including health education and school attendance. The plan also sought to address social norms on child marriage and ensure laws and guidelines on child marriages were in line with government policies on child welfare. In January the government said the roadmap led to a decline in child marriages in Selangor State by 83 percent between 2018-2022. Kedah State also increased its minimum age for marriage to 18 for women during the roadmap's implementation period. NGOs, however, highlighted a lack of progress in other states.

### **c. Protection to Refugees**

The government generally did not impede organizations providing protection and assistance to refugees or asylum seekers, most of whom

lived intermingled with the public. The government cooperated to a limited extent with Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in providing protection and assistance to refugees and asylum seekers. As there was no legal framework for dealing with refugees and asylum seekers, UNHCR conducted all activities related to protection, including registration and status determination. The government recorded approximately 136,000 Filipino Muslim refugees in Sabah.

### **Provision of First Asylum**

The law did not provide for granting asylum or refugee status, and the government had no system for providing protection to asylum seekers or refugees.

Refugees received no government support.

Viewed in law as “illegal immigrants,” refugees and asylum seekers also faced a maximum of five years’ imprisonment, a fine, or both, and mandatory caning with a maximum of six strokes for immigration law violations.

Refugees and asylum seekers were subject to deportation at any time, although the government did not deport Rohingya; deportation of other refugees or asylum seekers was rare. There were no reported instances of government forcibly repelling boats with refugees and asylum seekers who

had come from a country where their lives or freedom could be threatened due to their race, religion, nationality, membership in a particular social group, or political opinion. When the boats landed, UNHCR reported it had no access, and the individuals were detained for illegal entry.

#### **d. Acts of Antisemitism and Antisemitic Incitement**

The country's Jewish population was estimated at 100-200 mostly foreign residents. Antisemitic rhetoric and attitudes were a serious problem across the political spectrum and attracted wide support among segments of the population.

In January former Prime Minister Mahathir described Jews as “monsters” who were “achieving their own final solution” through the Israel-Gaza conflict.

There were restrictions on Israeli citizens entering the country.

#### **e. Instances of Transnational Repression**

The government knowingly cooperated with other governments to facilitate their acts of transnational repression.

#### **Knowing Cooperation with Other Governments to Facilitate Their Acts of Transnational Repression**

In October the Associated Press reported Malaysian authorities arrested and

deported Nuon Toen, a Cambodian woman living in Malaysia, at the request of the Cambodian government. She supported the opposition Cambodian National Rescue Party and posted criticism on Facebook of Cambodia's political leadership; she was arrested upon her return to Cambodia.